

25CMCV01462 25CMCV01462

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-23

Motion: DEFENDANT'S DEMURRER AND MOTION TO STRIKE

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Case Number: 25CMCV01462 Hearing Date: June 23, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

NICOLE LUNAN JOHNSON,

Plaintiff,

vs.

MG

PROPERTIES GROUP INC.,

Defendant.

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CASE NO: 25CMCV01462

[TENTATIVE]

ORDER RE: DEFENDANT'S DEMURRER AND MOTION TO STRIKE

Dept.

A

DATE:

June 23, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 09/03/2025

TRIAL:

11/06/2028

MOVING PARTY: Defendant

Gleiberman Properties, Inc.

RESPONDING PARTY: Plaintiff

Nicole Lunan Johnson

1. Background

Plaintiff Nicole Lunan Johnson ("Plaintiff") alleges

that she was a resident at the apartment complex known as Evolve South Bay,

which at all relevant times was owned, operated, and managed by defendant

Gleiberman Properties Inc. ("Defendant"), erroneously named as MG Properties

Group Inc. Plaintiff alleges that in spring of 2025, the air conditioning unit

in Plaintiff's apartment failed, and that after being informed, Defendant

failed to repair the air conditioning unit. Plaintiff alleges that on June 11, 2025,

after submitting a formal demand relating to electricity overpayment due to the

malfunctioning air conditioning unit, Defendant sent Plaintiff an email falsely

stating that she was in eviction and that her case had been sent to

collections.

2. Discussion

a. Demurrer

Defendant demurs to the fourth, fifth, sixth, and

seventh causes of action in the First Amended Complaint ("FAC"). Defendant

contends that each of these claims fails to state facts sufficient to

constitute a cause of action.

Plaintiff's opposition was untimely filed on June 17,

2026. Plaintiff provides no explanation for why Plaintiff's opposition was

untimely. However, Defendant stated in its reply that Plaintiff timely served

her opposition on June 6, 2026, as well as on two other dates. The court will

therefore exercise its discretion to consider Plaintiff's opposition.

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v.

Mirza (2007) 147 Cal.App.4th 740, 747 (Hahn).) When considering

demurrers, courts read the allegations liberally and in context. (Taylor v.

City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216,

1228.) In a demurrer proceeding, the defects must be apparent on the face of

the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co.

(2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not

the evidence or other extrinsic matters. Therefore, it lies only where the

defects appear on the face of the pleading or are judicially noticed." (SKF

Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.)

The ultimate facts alleged in the complaint must be deemed true, as well as all facts that may be implied or inferred from those expressly alleged. (Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1403; see also Shields v. County of San Diego (1984) 155 Cal.App.3d 103, 133 [stating, “[o]n demurrer, pleadings are read liberally and allegations contained therein are assumed to be true.”]) “The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.]” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

1. The fourth cause of action for violation of Civil

Code § 1788.17 and fifth cause of action for violation of 15 U.S.C. § 1692 fail

Defendant contends that the fourth cause of action for

violation of the Rosenthal Fair Debt Collection Practices Act, Civil Code §

1788.17, and the fifth cause of action for violation of the Federal Fair Debt

Collection Practices Act, 15 U.S.C. § 1692, fail because Plaintiff has failed

to show that Defendant is a debt collector.

The Rosenthal Fair Debt Collection Practices Act

("Rosenthal Act") and the Federal Fair Debt Collection Practices Act ("FDCPA")

are intended to ensure that debt collectors and debtors exercise their

responsibilities to one another with fairness, honesty, and due regard for the

rights of the other. (Civ. Code § 1788.1; 15 U.S.C. § 1692.) The definition of

a debt collector within the Rosenthal Act is broader than that contained within

the FDCPA. (Lara v. Experian Information Solutions, Inc. (2022) 625

F.Supp.3d 1062, 1076.) Under the FDCPA, a debt collector is defined as "any

person who uses any instrumentality of interstate commerce or the mails in any

business the principal purpose of which is the collection of any debts, or who

regularly collects or attempts to collect, directly or indirectly, debts owed

or due or asserted to be owed or due another." (15 U.S.C. § 1692a, subd. (6).)

Under the Rosenthal Act, a debt collector is defined as "any person who, in the

ordinary course of business, regularly, on behalf of that person or others,

engages in debt collection." (Civ. Code § 1788.2.)

Generally, a creditor who uses a separate entity to

collect its debts is not a debt collector under the Rosenthal Act. (Gold v.

Midland Credit Management, Inc. (2015) 82 F.Supp.3d 1064, 1072.) However,

such a creditor may be treated as a debt collector if there is evidence that

the creditor and debt collection entity are part of a single economic

enterprise, such as if they were affiliated or operated under common ownership.

(Olson v. La Jolla Neurological Associates (2022) 85 Cal.App.5th 723,

736 (Olson).)

Plaintiff alleges that Defendant sent Plaintiff a set

of automated payment demand emails. (FAC ¶¶ 42-45, 48.) However, Plaintiff does

not allege that Defendant's business involved regularly engaging in debt

collection activity. Defendant engaging in the debt collection process against

Plaintiff does not make Defendant a debt collector within the meaning of the

Rosenthal Act, in the absence of allegations that Defendant regularly engaged

in debt collection activity.

Additionally, under the FDCPA, a debt collector is a

person who engages in debt collection activities on behalf of others. Engaging

in collection of a debt owed to oneself does not make that person a debt

collector within the meaning of the FDCPA. (Olson, *supra*, 85

Cal.App.5th at p. 734.) Plaintiff contends that Defendant is subject to the

FDCPA because Defendant operated through a third-party debt collection agency

in a way that concealed its identity, arguing that Defendant used PayReady's

portal to send automated collection notices to Plaintiff and operated under the

name "MG Properties Customer Care"; however, Plaintiff makes no allegation in

the FAC that Defendant sought to conceal or obscure its identity. The only

allegations in the FAC relating to PayReady refer to its use as a payment

portal, not a debt collection service. This argument therefore fails.

The court will therefore sustain Defendant's demurrer

to the fourth and fifth causes of action, with leave to amend.

2. The sixth cause of action for violation of the

Federal Fair Credit Reporting Act fails

15 U.S.C. 1681 et seq., the Fair Credit Reporting Act

("FCRA"), is meant in part to protect consumers from inaccurate information in

a consumer report used as a factor in determining their eligibility for credit

or employment. (Wiggins v. District Cablevision, Inc. (D.D.C. 1994)

853 F.Supp. 484, 489.)

A consumer report is defined as "any written, oral, or

other communication of any information by a consumer reporting agency bearing

on a consumer's credit worthiness, credit standing, credit capacity, character,

general reputation, personal characteristics, or mode of living which is used

or expected to be used or collected in whole or in part for the purpose of

serving as a factor in establishing the consumer's eligibility for" credit,

employment, or any other permissible purpose. (15 U.S.C. 1681a, subd. (d)(1).)

A consumer reporting agency is "any person which, for monetary fees, dues, or

on a cooperative nonprofit basis, regularly engages in whole or in part in the

practice of assembling or evaluating consumer credit information or other information on consumers for the purpose of furnishing consumer reports to third parties, and which uses any means or facility of interstate commerce for the purpose of preparing or furnishing consumer reports.” (Id., subd.

(f).)

Plaintiff alleges that Defendant reported, or caused to be reported to third parties, false information that Plaintiff was “in eviction” and had an unpaid balance. (FAC ¶ 95.) However, this conduct does not constitute a violation of the FCRA in the absence of further information indicating that Defendant is a consumer reporting agency and that the communication at issue was expected to be used to serve as a factor in establishing Plaintiff’s eligibility for credit, employment, or other permissible uses. Plaintiff does not allege such. Additionally, Plaintiff concedes in her opposition that the sixth cause of action is not adequately pled.

The court will therefore sustain Defendant’s demurrer to the sixth cause of action, with leave to amend.

3. The seventh cause of action for intentional infliction of emotional distress fails

A cause of action for intentional infliction of emotional distress exists when there is: (1) extreme and outrageous conduct by

the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051 [citations and quotations omitted].) A defendant's conduct is "outrageous" when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Ibid.) And the defendant must either intend his or her conduct to inflict injury or engaged in it with the realization that injury will result. Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (Ibid.)

Severe emotional distress is a high bar, requiring a demonstration of "emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it. [Citation.]" (Hughes v. Pair, supra, at p. 1051; see also CACI No. 1602 [conduct must go beyond mere insults, indignities, threats, hurt feelings or bad manners that a reasonable person is expected to endure].)

Defendant previously demurred to this cause of action in the original complaint, and the court sustained Defendant's prior demurrer based on failure to allege outrageous conduct or severe emotional distress.

Although Plaintiff has added additional details to the FAC, these additional details do not change the nature of the allegations in the FAC to adequately severe emotional distress.

Plaintiff alleges that Defendant improperly designated

Plaintiff as "in eviction" without filing an unlawful detainer complaint and

engaged in collections activity. Although debt collection activities may

constitute outrageous conduct, this is only the case if the creditor's conduct

goes beyond "all reasonable bounds of decency." (Ross v. Creel Printing

& Publishing Co. (2002) 100 Cal.App.4th 736, 745.) Here, no

reasonable trier of fact could determine that Defendant's alleged conduct in

debt collection was so extreme as to exceed all bounds of that usually

tolerated in civilized society. However, Plaintiff also alleges that Defendant

changed Plaintiff's thermostat from 68 degrees to 58 degrees during an

authorized entry in order to defeat Plaintiff's habitability complaint by

contending that Plaintiff's unusually high electricity bill arose due to

Plaintiff's setting of the thermostat at 58 degrees. A reasonable trier of fact

could find that this conduct, as alleged, constituted outrageous conduct.

However, with respect to emotional distress, Plaintiff

alleged that she experienced stress from moving, receiving collections demands,

and having her thermostat changed by an employee of Defendant without her

knowledge, causing her insomnia and anxiety. As stated in the court's April 1, 2026 minute order, this does not constitute emotional distress of such substantial or enduring quality that no reasonable person in civilized society would be expected to endure it. (Wong v. Jing (2010) 189 Cal.App.4th 1354, 1377 [discomfort, anxiety, and insomnia do not constitute severe emotional distress].)

As the court has previously sustained a demurrer on these grounds, the court will sustain Defendant's demurrer to the seventh cause of action in the FAC without leave to amend.

b. Motion to Strike

Defendant moves to strike the requests for punitive damages, and attorney's fees from the FAC. Defendant contends that Plaintiff has failed to allege facts supporting a finding of malice, oppression, or fraud; that Plaintiff is a pro per litigant; and that these requests have previously been stricken from the original complaint. In opposition, Plaintiff contends that the FAC adequately pleads punitive damages based on newly-pled facts. Plaintiff concedes that the request for attorney's fees is improper.

Any party,

within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code of Civ. Proc., § 435,

subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).)¿The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court.¿(Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294.¿(*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721 (*College Hospital*).)¿These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).)¿

“Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*College Hospital, supra*, 8 Cal.4th at p. 725 [examining Civ. Code, § 3294, subd. (c)(1)].) “A conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on

this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (Taylor v. Superior Court (1979) 24 Cal.3d 890, 895-896.)

“As amended to

include [despicable], the statute plainly indicates that absent an intent to

injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’

disregard of the plaintiffs’ interests.” (The additional component of ‘despicable

conduct’ must be found.” (College Hospital, supra, 8 Cal.4th at

p. 725.) (The statute’s reference to despicable conduct represents a “new

substantive limitation on punitive damage awards.” (Ibid.) (Despicable

conduct is “conduct which is so vile, base, contemptible, miserable, wretched

or loathsome that it would be looked down upon and despised by ordinary decent

people.” (Such conduct has been described as ‘having the character of outrage

frequently associated with crime.’ ” (Tomaselli v. Transamerica Ins. Co.

(1994) 25 Cal.App.4th 1269, 1287.)

On April 1,

2026, the court granted Defendant’s motion to strike Plaintiff’s requests for

punitive damages and attorney’s fees from the original complaint. The court did

not clearly state at that time whether these requests were stricken with or

without leave to amend, and the court will therefore consider Plaintiff's

requests in the FAC on the merits.

Plaintiff also

contends that her allegation that Defendant improperly designated her as "in

eviction" constituted malice and Defendant's managing employees' ratification

of this constituted oppression. No reasonable trier of fact could find that

Defendant's conduct in such constituted despicable conduct as is required for a

finding of malice or oppression. (See Civ. Code §3294, subd. (c)(1)-(2).)

However, Plaintiff

also alleged that Defendant tampered with Plaintiff's thermostat in order to

create false evidence to defeat Plaintiff's habitability complaint. (FAC ¶ 33.)

A reasonable trier of fact could find that this constituted despicable conduct

as required for a finding of malice.

Plaintiff has

therefore adequately stated state a prima facie claim for punitive damages in

the FAC.

Pro per

litigants may not recover attorney's fees. (Trope v. Katz (1995) 11

Cal.4th 274, 280.) Therefore, as Plaintiff filed this action pro per, Plaintiff

may not recover attorney's fees on this action unless Plaintiff retains

counsel. Plaintiff's request for attorney's fees in the complaint is therefore improper.

The court will

therefore deny Defendant's motion to strike Plaintiff's request for punitive damages, but grant Defendant's motion to strike Plaintiff's request for attorney's fees, with leave to amend only if Plaintiff retains counsel.

3. Conclusion

Based on the foregoing, the court SUSTAINS Defendant's demurrer to the fourth, fifth, and sixth causes of action in the First Amended Complaint, with leave to amend. The court SUSTAINS Defendant's demurrer to the seventh cause of action in the First Amended Complaint, without leave to amend.

The court DENIES Defendant's motion to strike Plaintiff's request for punitive damages. The court GRANTS Defendant's motion to strike Plaintiff's request for attorney's fees, with leave to amend only if Plaintiff retains counsel.

Defendant

is ordered to give notice.

IT

IS SO ORDERED.

DATED: June 23, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court